

Federal Maritime Commission Washington DC

Office of Administrative Law Judges

Mohammad Rana,	}	
Complainant	}	Docket No. 19-03
	}	
V.	}	
	}	
Michelle Franklin	}	Date: June 15, 2020
The Right Move, Inc	}	
Respondent	}	

BEFORE : Honorable Erin M. Wirth , Administrative Law Judge .

Respondent's appeal to Initial Decision.

Introduction:

Honorable judge Erin M. Wirth, start her initial decision by stating that "the respondent only selectively responded to discovery requests, and complainant was permitted to rely on her lack of response as factual support for his case. "

She goes on and provide explanations as to why she had concluded that the respondent violated section 41102(a) formerly 10(a) (1) of the shipping act by utilizing unjust or unfair means to obtain ocean transport, mostly relying on lack of evidence from the respondent and based on the interpretation of the complainant which is lacking basic shipping understanding.

According to the dictionary the definition of the word obtains:

to come into possession of; get, acquire, or procure, as through an effort or by a request:

The respondent reached out to the complaint on **Jan 28, 2019** with a quote for shipping service door to door based on 200 Cubic feet.

After few E-mails of adjusting the service and rates the complainant accepted the terms and conditions on **Feb 6, 2019**. (Exhibit 0-0)

It means that the respondent obtained the service on Feb 6, 2019.

Since both the respondent and the complainant are representing themselves and have no legal background, the respondent agree that this case is unique.

The respondent is not familiar with legal procedures and have never been engaged in one prior to this case.

The respondent was involved in mediation process through the FMC in the past, and believed it is the same protocol.

The responded was not aware she needs to respond to the complainant unless she was instructed to.

Such instructions came on July 25, 2019, when the FMC sent an order to show cause and that's when respondent understood, this is a different protocol, and she needs to respond each time.

Respondent lack of understanding of the process also caused her to respond by general E-mails, lacking proof of facts, or supporting evidence not out of disrespect or lack of cooperation.

Throughout the process the respondent learned how to handle such replies and tried her best to provide what was needed, without jeopardizing her safety.

The respondent expressed several times that some of the finding facts are personal information and or corporate information she is not comfortable sharing with an individual.

At no point, the respondent was aware nor advised that she is able to submit confidential documents, only until after the initial decision was issued.

The respondent understands that the FMC is not providing legal assistance, and that it is her responsibility to know what and what not she needs to do , but how can you expect one to know what they don't know they need to know.

For example, The respondent had no idea she can object to new allegations raised by the complainant.

On Oct 30, 2019 an order was issued denying complainant motions for default and summary decision.

On Feb 6, 2020 an order was issued denying complainant motion for finding of facts.

On Feb 12, 2020 an order was issued denying complainant motion for clarification.

Every time the honorable judge issued a denial order, the respondent believed she made her defense clear and that the honorable judge has accepted the explanation and therefore denied the complainant from any additional information.

The respondent does not understand how in the initial decision it all is being used against her.

Had the respondent knew that the lack of providing these findings will be used against her, she would have shared more relevant information throughout the process.

The respondent never acted in bad faith, and strongly believe she acted and have done everything she could within her limited ability, especially her financial ability.

The respondent still believes there are 2 main parts to this claim.

The ocean freight costs and all the expenses that the complainant is asking that are not related to the ocean freight.

The ocean freight costs are not questionable since the respondent has already agreed that Complainant is entitled to the ocean freight refund and 5 demurrage days caused by the delay. if its done in bad faith or not, it is still the same outcome.

The other expenses which were granted to the complaint by her Honorable judge are still in question. her honorable judge granted the complaint 18 days of lodging, food, and taxi service. But stated he is liable for his own ocean shipping costs.

Her honorable Judge based her decision on the complainant assumption It is going to take him 3 days, not actual facts or research .

Considering the complainant has no idea what a BOL is, how does he know it takes only 3 days? According to a reputable agent in Pakistan the process takes 7-

10 as standard without complications and delays. not to mention that the complainant doesn't even need to physically be in Karachi if indeed he had an agent to handle his custom clearance process, **and 100% of all of his expenses could have been avoided!**

While her honorable judge explain time after time why the respondent behavior is an indication for knowingly and willfully violating the shipping act, it is not based on facts, it is based on E-mails exchanged between the respondent and complainant at a very stressful times on April , 2019 **almost 2 months after she obtained the business !** not reflecting the respondent true character but rather emphasis the actual stress and hopelessness that came with realizing the ocean was not paid for in time.

A person who is acting knowingly and willfully also have a very clear plan of how to explain the situation, rather than run around like a headless chicken and come up with excuses as to why the situation occurred.

Not to mention that a person who knowingly and willfully does something bad, usually do not stick around to deal with it, but rather disappear.

The respondent many E-mails of explanations and excuses, true or not, is a proof she was just as confused about the situation and stressful!

Finding of facts:

1. Respondent legal name is Michal Franklin, and she has been referred to by Michelle Franklin for the past 17 years, for 2 reasons, A. her name was often confused as Michael. B. It is very hard for Americans to pronounce her name. the respondent is being called Michelle by her friends, her coworkers her Ex – husband, her daughter's teachers and everyone that come in touch with her for the last 17 years. Including library card, Gym membership etc.

The respondent has no other names, and any other name that may came up was simply misspelling or an error.

The respondent was referred to as Michelle in mediation process by the FMC before, and since she believed it is the same protocol, she was not aware it was required she needs to use her legal name only until later in the process.

2. Bill Of Lading: (Honorable Judge sections 20 through 32
It appears that some of the facts are missing or incorrect.

Bill Of lading instructions were due on Feb 19, 2019. Since SSL roll the container without proper BOL respondent issued a draft and submitted in time to make sure no roll over fees ,detention and any other storage costs will occur to protect the customer even though the complaint failed to provide proper BOL instructions in time . (Exhibit 1 -0)

Providing the complainant with improper BOL would have caused more harm, and the respondent kept chasing the complainant to send proper information so she can provide him with the accurate BOL copy.

- On Feb 6, I sent the customer self-loading instructions and how to write the Inventory list. I also explained it all, over the phone. (Exhibit 1-1, Pages 1-2)
- On Feb 20, I followed up with the customer what missing details for the BOL are needed, knowing the vessel will depart on Feb 26 and up to the departure date, you can change BOL without any penalties. (Exhibit 1-2)
- Complainant responded on March 12 sending an unclear Inventory. Respondent advised the complainant this it is unclear, and he must send a clear one ASAP. (Exhibit 1-3)
- On March 25, Complaint sent partial Inventory.
- On March 27 Complainant sent the complete information needed.
- On March 28 Complainant confirmed his consignment instructions and chose to leave his custom clearing agent out of the BOL.
- On March 28, requested to change BOL was sent to Troy.
- March 28, 2019 was a Thursday, considering Pakistan are closed on Friday and the USA is closed on Sun – Monday, the first time I had any response about the BOL changes in such last minute was on Monday April 2nd.
- On April 2nd respondent had no choice but to share with the complainant the incomplete BOL copy. and later on April 4,2019 Respondent suggested to issue a house BOL to show all correct info after Complainant agent confirmed it will help !

It was already established that the complainant had no idea what a bill of lading is, and why he needs it.

While the respondent is happy to assist, she is not here to provide basic shipping education and can't be held liable for any delays caused by the complainant lack of understanding how important is the BOL to the process and the delay he caused on receiving one in a timely manner.

3. Ocean Payment – BOL was issued as Prepaid. (Exhibit 2-0)

Only upon confirmation that the Ocean was indeed not paid for the respondent requested Troy to allow the complainant to pay at destination. That was done after a phone call with the complainant On April 5th on same call the respondent explained that waiting with the payment will result in delays and additional fees. Considering on April 2nd the Complainant was aware of limited free days. (Exhibit 2-1) and considering that again, the weekend was just around the corner the complainant knew the implications.

Exhibit 2-1 Also address the allegations that CP World, Troy's agent referred to respondent and the Right Move to commit fraud, which up to date the complainant didn't provide any proof for.

4. The Right Move, Inc – proper closing process.

On Feb 25, 2019 the respondent made her first step to inquire about what it takes to close the company? (**19 days after obtaining the business from complainant**)

The respondent reached out to the FMC by E-mail and phone, and expressed her intentions and asked what is the proper process? In order to gather all the information, she needs to make a final decision.

The respondent is in the shipping industry for the past 15 year and have seen many times how companies closes.

How they simply disappear, how they leave customers stranded everywhere! how the FMC time after time must jump in and figure out where these shipments are and who may be able to take care of them.

In 2015, Swift International closed the company and disappeared! They left 10's of customers stranded, and the FMC refereed some of the customers to the Right Move, Inc to help complete the shipment.

In 2017 (Sep – Nov) the respondent was hired as a consultant for a company called OC – Lines. It lasted 2 months before respondent noticed the red flags of their behavior, as such, respondent decided to part ways, and called the FMC to report their behavior.

in March 2018, OC Lines closed, leaving over 40 customers stranded everywhere. The same person who the respondent called to report their behavior reached out and asked for her help!

After the owner of the company consented, respondent drove 2 hours back and forth to collect the actual files from their operation employee (Stephanie) with information on all the files, on behalf of the FMC and helped the FMC figure out the situation of each file. (Exhibit 3-0)

On Feb 28, the respondent decided to start taking the proper steps to close the company. **(22 days after obtaining the business)**

As such she reached out to 3 customers that still were in process, and send the attached E-mail (Exhibit 3-1) an explanation, exact instructions of where the shipment is, and what needs to be done, and of course, how to retrieve their fees.

(these customers paid The Right Move, Inc account, not Michal Franklin, an account which was valid and active until Feb, 2019 - Exhibit 3-2 shows the Right Move Inc account details were provided on the Invoice)

Of course, the 3 customers reached out to the FMC , and in the background respondent was doing all she can to refund them directly **which she have succeed.**

Ms. Zoraya B. De La Cruz, was assisting the respondent and the customers.

(Exhibit 3-3)

Since the respondent reached out to inform customers she believed will be affected, why not include the complainant On Feb 29, 2019?

The answer is because there was no reason to suspect the ocean shipment is not paid for.

And while the respondent realized that the ocean was not paid, **she followed the same protocol and advised the complainant to contact the FMC and file a claim against her bond.**

(Exhibit 3-4) shows that The respondent alerted the FMC about not being able to reach an agreement with the complainant and requested the FMC to provide bond claiming details to the complainant. Dated May 2nd. 2019.

5. Part 74 Of the honorable judge decision refers to missing an E-mail reply from the FMC. The respondent would like to point out that the respondent 3 times have brought to the FMC's attention her intentions to close the company and on 3 these different occasions did not get any response from the FMC about the matter.

First time on Feb 25 on the phone while inquiring.

Second time on an E-mail to Ms. B De La Cruz on May 2, 2019

And third time on June 10, 2019.

On July 9th the respondent was advised that her license was revoked due to not maintaining proper bond which will not affect her future application.

6. Part 77 , Exhibit 4-0 Is a proof the respondent always had the intentions of compensating the complainant for the delay caused by the ocean release delay , and in fact the respondent had intention to help even more . the respondent was waiting for actual number figure to be able to confirm how much she can contribute.

7. Parts 78-82 is completely related on the respondent refusal to share personal and corporate tax information with another individual! **Why would anyone share such sensitive information with another individua?!** the respondent stated all along she has no issue sharing this information with the FMC, in a confidential matter. Exhibit 5-0 supporting that the 2 are in fact separated and that the Right Move Inc, maintained proper corporate formalities including in the year 2019 which final tax return was filed for , for The Right Move, inc.

8. Part 83 – 87 – Expenses in Pakistan.

First and foremost, a customer who has a clearing agent which the complainant stated he had, never ever needs to deal with custom clearance directly, nor be physically at the port location. (Exhibit 6-0) is a formal E-mail from an agent in Pakistan who is assisting US companies for year and is very reputable !

1. According to the agent in Pakistan regular custom clearance takes 7-10 days, so we can refer to 8.5 as an average. Or decide that 10 days is still a reasonable duration, as it is still within the standard.
2. NOC is a regular process and can be validated to any period you require. Of course, if your assumption is that it takes 3 days to clear custom you are setting yourself for failure. Regardless to the duration it was originally issued for. Once it was clear there is a delay with the container, one should have been aware of the delay and plan 5 steps a head and extend the NOC ahead of time, not wait until the last minute and losing 3 extra days over it.
3. Individuals do not require to be present at the custom process, not visit the steamship line in person! since the complainant hired a custom clearing agent according to his statement, the agent could have handled it all, which the complainant presence was not even required in Karachi.

While the ocean release was indeed delayed due to the failure to pay, and demurrage charges are understandable. **every other cost incurred by the complaint are not a necessity, it was by choice!**

The complainant never approached the respondent in real time and asked for assistance, the responded was able to provide custom clearance option for \$300 which would have allowed the Complainant to go back home to Islamabad and avoid lodging, food , taxi and any other expenses he claim as a result.

While the complainant provided an online calculation to his daily expenses, it is beyond unreasonable to believe that it cost \$82 a day to feed yourself in Pakistan. I feed my daughter and myself for \$80 a week!

Not to mention \$130 a night for a king size bed in a hotel.

This is not necessities, this is luxury, the complainant could easily find a cheaper room for half the price.

And regardless to all the above, even if the complainant is indeed entitled to compensation, the cost should be the most based on 13 days, considering it was established that the process takes 10 days anyway!

The Complainant didn't provide any explanation as to why he needed to be physically in Karachi while he hired a professional agent to handle his custom clearance and all he needed to do was provide his original passport which is a common practice in Pakistan.

The complainant didn't explain why he needed to stay in a king size bed hotel room and why he needed \$82 a day to feed himself.

Analysis and Conclusions.

- B. There is a lot of information that the respondent provided, such as the reason her bond was terminated (it was intentional, the company was closing , what is the point to renew and occur additional expenses) , and her license revoked. The respondent confirmed that she was never engaged in any legal mater under the Right move, Inc or personally.

The respondent refused to share personal / corporate details with another individual, because she believed it is irrelevant to the case.

If the reason is to establish separation between the Right move Inc and Michal Franklin, it can easily be done with a letter from accountant.

The respondent also refused to drag any other company into this claim and refused to share the information considering the outcome is the same, and the ocean was indeed not paid for.

- C. 1. The respondent never refused to pay the demurrage owed, the respondent Was questioning the complainant knowledge and the reason why this shipment was delayed further than needed. Since she has no control over

his actions after the shipment was released due to payment and the complainant actions affected her as well.

The shipment arrived on March 31, the complainant found out that the shipment is not paid for on April 2nd, but only on April 5th he reached out to the respondent, losing 3 extra days.

Also, on April 5, the respondent explained to the complainant the options, and the complainant was aware of his options of paying directly and later collecting compensation under the bond.

The respondent does not blame the complainant for waiting and allowing her to sort the payment issue from her side, but this was consciously done, while fully understanding the implications.

2. Since the Right Move Inc, was fully bonded and insured at the time of transaction, and the Bond was created to protect Customers from underfinanced companies, **this is a reasonable and suitable solution!**

This solution was offered to the customer on 2 occasions,

- A. On April 5, 2019 , on an E-mail :

“We are fully licensed and insured, and you can file a claim against the company bond! If you need to pay, I will send you the details of how to file a claim and retrieve your money! “

- B. On April 8, asking the complainant to contact Ms. B De La Cruz , and provided him her E-mails . knowing Ms. De La Cruz is aware of the situation (Copy of these 2 E-mails were provided before .)

and as exhibit 3-4 Pages 1-2 indicates, Ms. B. De La Cruz, was instructed to provide him the claim procedure details as well.

3. Failure to pay back despite many promises –

By April 2019, (**almost 2 months after she obtained the business**) The respondent have been for almost a month and a half with no proper income, considering the fact she didn't take any new business and due to personal obligations couldn't find a job. The Respondent was struggling financially and was depending on the little money she was still owed. When some money indeed came in, the respondent was forced to pay her

most necessary bills, such as electricity, water and gas. The respondent is a single mom, was living in NY which is expensive to begin with.

Every time the respondent made a promise to pay, she was intending to do so, however when you have a kid and a lot of other necessities, the choice is obvious.

The respondent had a line of credit for the Right Move, inc, the Line of credit was with a personal guarantee. The respondent failed to pay her line of credit resulting in Chase bank emptying her personal accounts on Feb 27, 2019 despite calling and crying over the phone and explaining that I have a kid to support.

This action triggered the respondent to eventually realizing she no longer have the strength to fight for saving her business. Desperation is a terrible thing. And on Feb 28, after making her final decision, she reached out to the customers she knew will be affected and made sure they are aware and know what needs to be done! **(that's 22 days after she Obtained the business)**

All the promises made were real ! the respondent had every intention to pay complainant back ! respondent was hoping and knew all along that it will be best if complainant will file a claim against he bond and allow her to negotiate with the Insurance a payment plan , but the complainant was so upset and the respondent was truly stressed out and wanted to be over with it and somehow still prove to complainant she is not a bad person . So she made so many attempts to pay it. Even initiated wire twice, which were returned for insufficient funds.

The respondent regret for not making it clear that she has no personal ability to pay at the moment rather than empty promises.

This could have saved both parties so much stress and aggravation.

For that she apologizes!

4. Respondent chased the Complainant for proper details for the BOL. (As explained in finding facts sections 2. On this document) and

Respondent provided the complainant the vessel details prior to loading. The shipper is not responsible for vessel schedule after departure, or arrival dates, delayed or advanced! the responsibility on the arrival update is on the consignee, as they are the one to receive the arrival notice prior to shipment arrival. If the responsibility was on the shipping agent, how come the shipping agent never receive an arrival notice? The SSL send an arrival notice ahead of time, had complainant consigned the shipment to his agent care, he would have known the actual arrival date and could have planned accordingly .

I agree this would have not resolved the payment issue but could have saved days of demurrage.

5. “ The Evidence demonstrates that when respondent accepted complainant booking respondent knew The Right Move, Inc, may be closing”.

The respondent business was depending on buying leads.

Jan 28, 2019 is the first time the respondent approached the complainant trying to obtain his business.

On Jan 30, 2019 The respondent alerted the lead company that the lead quality is poor and asked for better leads. (Exhibit 7-0)

The respondent obtained the business on Feb 6, 2019 which at that time was still fighting hard to keep her business going!

Leads conversion time is usually a month a head, which means, in Feb you work with potential customers who will move in March and so forth.

The respondent was relaying on “good leads to come in Feb and to keep her business going after she addressed it with the lead provider.

Since lead time to book leads is a month, it is unreasonable to think that by Feb 6, 2019 the time she obtained the business , she knew she will be closing as she kept buying leads and working with new potential customers.

Also, according to this statement, no struggling business should ever take any new business due to the reason they may fail after all, of course this is not even realistic!

Victoria Secret recently announced they are closing 150 Stores.

Michael's headquarter in Dallas are downsizing and moving to a smaller building, their employees will rotate working from the office, there was no public announcement to customers. According to their financial struggle these 2 should refuse new business.

6. "Respondent knowingly and willfully opened a personal bank account to accept complainant payment **"absolutely true! but not for the reason you suggest !!!**

The Right Move, inc Bank account for over 9 years was Chase.

The Right Move Inc had a line of credit and the last few months of 2018 failed to maintain proper monthly payments as mentioned before.

Also, The Right move inc, in order to control spending, stopped using credit cards, instead, have used a debit card.

Debit card makes you vulnerable, you plan on the money you have in the account, and sometimes these plans turn upside down.

One of the main expenses was buying leads. Lead providers charge you once or twice a month. When money was carefully planned, I requested not to charge until they confirm with me first , but this didn't help, they kept reaching out to the account and taking money whenever they wanted, and since it was a debit card, you can't dispute it . (Exhibit 8-0)

The Right Move inc was leasing an office, and the lease expired date was Jan 31, 2019.

Since The respondent was looking for ways to minimize her costs, the decision was to move to a smaller office, on a monthly basis and therefore most files and corporate docs were packed in boxes and placed in storage.

Due to the issue with the line of credit, respondent was afraid that Chase bank will empty the business accounts (there were 2 accounts for the Right Move, Inc) , and after a friendly advice from Ms. Linda Allen (business

banking portfolio at chase bank) I realized that the only way to avoid complication is to open a bank account with another provider.

I chose to work with a local bank in NY, called Beth page, and since the last time I opened a business account was 2011, I wasn't sure which documents they will need. so I went to the bank, to get the list of docs needed. The assistant said I could open an account and later just fax / E-mail the company info in order to convert it to the corporate account. Its seemed reasonable so I did.

Only the search for the proper paperwork was delayed because everything was boxed up.

The complainant is the only person who ever paid to a personal account, and even that was a weird coincidence and chain of events. As it was never intended to be a personal account.

I have stated before, my personal accounts were with Chase as well.

Had I suspected that chase may go after the money in my personal accounts too, and not just the business, I would have transferred that money. **but in reality, Chase emptied my personal accounts on Feb 27, 2019. Ans as mentioned before that was the last event that lead me to later on decide to close!**

7. "The Respondent Obtained transportation at less than applicable rates.

The ocean cost was \$1,045 as presented in Exhibit 2-0

The respondent expected inland costs in the USA for \$970, leaving her with a potential profit of \$580.00

Exhibit 9-0 are the Invoices paid for the inland transport in the amount of \$1,265. **Leaves the respondent with a total profit of \$285.00**

(the receipt amount is higher due to late fees and debit card processing fee)

The respondent stated before several times, that to assume she can get away with not paying the ocean costs, directly or through the bond is not even realistic!

The respondent never had any intentions not paying the ocean freight.

When the ocean freight was confirmed to be still pending the respondent knew the implications **and suggested the complainant will contact the bond company!**

Therefore at no point what so ever the respondent believed she will gain from not paying the ocean, and it is not even possible due to her personal bond !

Had the respondent provided other services and collected money and they were not paid for , maybe . but with ocean freight, there is absolutely no way to avoid paying it !

Had the respondent was trying to gain any profit, she could have refused to pay the inland transport, but that has never ever crossed her mind!

8. Invoices in General

Few times through the decision her honorable judge brings up suggestions that the respondent struggled financially to pay her bills.

That she should have managed her money better and that “Financial Problems do not justify the failure to pay “

In 2012 the Right Move had a Credit card fraud for \$12,000.

In 2013 The Right Move had shipped a container to Jordan, but the customer disappeared! leaving the Right move with \$8,000 debt of abandonment fees + \$3,400 ocean cost.

In 2014 another customer abandons their shipment in Algeria and left the Right Move with \$5,000 debt.

In 2015, a Priest who shipped donated goods to Brazil abandon his shipment and left the Right move with a debt of \$5,000. Because all the cloths had tags on them and the Brazilian custom thought he is smuggling.

2016 The famous Madhu stole the container and left the Right Move inc with over \$7,000 debt.

2017 a company in UAE that sent Import shipments and disappeared leaving the Right move inc with over \$33,000 debt.

In 2018, a commercial company who requested Air shipment from China, with sever delays due to the weather, refused to pay a bill of \$6,000.00

Not once the FMC was able to assist! The FMC has no means to help companies against fraudulent customers , only to customers against companies.

Over the last 9 years, on average The right Move Inc will lose about \$15,000 on “bad Customers “.

The assumption that a company is collecting money and paying the same money towards the same shipment is wrong. Most Ocean vendors offer credit terms of net 30 days or before the vessel can be released at destination. Truckers offer credit for 30 days.

Other vendors require prepayment, like movers who needs to buy packing material.

Often the service to a customer is completed, and the bills comes 1-2 months later.

About 95% of all the Right Move business was Door to door and as such the payment terms were different than with the complainant.

Door to door customers pay only 15% deposit and the rest after the pickup. That resulted in the Right Move paying pick up costs ahead of time before money was collected from the customer.

Of course, financial planning is a key to a successful company. But not all companies are successful, and not all companies have a 100 % control of its incomes and expenses. There is a perfect world and there is reality.

The reality is that because shipping household goods is seasonal, most shipping companies struggle in the winter and thrive In the summer.

Since the FMC found a solution to companies' financial problems, and in order to obtain license you require to have a Bond, the bond is a solution the respondent can reply on and was offered to the complainant in real time .

Conclusion:

The question was whether the respondent violated section 41102(a) formerly 10(a) (1) of the shipping act by utilizing unjust or unfair means **to obtain ocean transport.**

Since the Respondent first attempted to obtain the business on Jan 28, 2019 and she obtained the business on Feb 6, 2019 and based on all the supporting documents there is absolutely no proof for violating the shipping act.

The respondent acted responsibly, in good faith, alerted the FMC, done all she can to help the last few customers and close her company of almost 10 years in the right way and with dignity . the decision to close was made on Feb 28 after the unfortunate chain of events explained before.

The respondent followed FMC protocol and offered an acceptable solution (by law) of filing against her bond in a timely manner, she provide the customer with the FMC details and the FMC with the customer details.

The respondent understands her mistakes and apologize for any inconvenience that was caused to the complainant. She let her ego lead and was ashamed of her actions of closing the company trying hard to defend them with endless E-mails that seems like excuses (but was actually mostly true) . **But this is not how she obtained the business! on Feb 6, 2019.** Those e-mails exchanges were 2 months after she obtained the business.

The respondents understand that the honorable judge may still have same exact opinion and the same conclusions, and she respect that very much! And would like the honorable judge to at least consider the below:

The respondent would like to ask the honorable judge to include the payment that the respondent made towards the inland transport in the amount of \$1,265.00 and deduct from the final amount owed.

The respondent also would like the honorable judge to acknowledge the custom clearance in Pakistan is not 3 days but rather 10 days.

The respondent would like the honorable judge to acknowledge the complainant presence in Karachi, was not necessary but rather a choice considering he had an agent to handle things and all lodging charges could have been avoided.

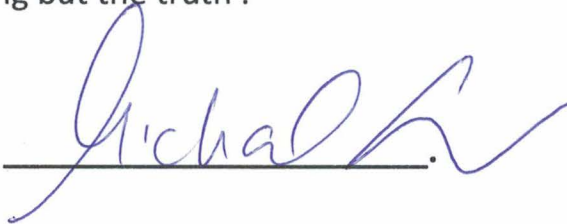
The respondent would like the honorable judge to consider that \$130 + \$82 a day/ night is a ridiculously high amount to cover one person lodging in Pakistan, and it is equal to an amount you would spend on a vacation in NYC .

Respectfully submitted:

Michal (Michelle) Franklin

I, Michal Franklin the respondent in FMC administrative complaint docket 19-30 do hereby solemnly swear and declare under oath and under penalty of perjury that everything submitted to the FMC on this document named "respondent appeal to initial decision " and any other document submitted to the FMC before is / was the truth and nothing but the truth .

Signature of Michal Franklin



Subscribed and sworn to before me, on June 15, 2020.



Notary Public

My commission

06/27/2021

